

Mother's Milk Substitutes (Control of Sale and Distribution) Act, 1992

Document type: act

Source: Nepal Law Commission / Ministry of Law, Justice and Parliamentary Affairs

Chunks merged: 8

2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) ?Breast milk substitutes? means any food being marketed or otherwise represented as a partial or total replacement for breast milk.

(b) ?Container? means any form of package used for sale as a retail unit of any product, and includes wrappers.

(c) ?Committee? means the Breastfeeding Protection and Promotion Committee constituted pursuant to Section 4.

(d) ?Product? means any of the following things or articles,-

(1) breast milk substitutes,

(2) any type of milk being marketed or sold as suitable for feeding infants with or without modification,

(3) any other food or beverage being marketed or sold as suitable for feeding infants,

(4) feeding bottles and teats.

(e) ?Distributor? means a person engaged in the business of selling or distributing any product, whether wholesale or retail, and includes a person engaged in the provision of public relations services or information relating to any product.

(f) ?Health care body? means any government, non-government or private institution or organization or person directly or indirectly involved in health care, and includes nurseries and other child care institutions.

(g) ?Health professional? means a medical practitioner, registered nurse or nutritionist, or such other persons as the Government of Nepal may, by notification in the Nepal Gazette, specify.

(h) ?Health worker? means a person employed or undergoing training for employment in a health care body and involved in health care work, whether salaried or unsalaried.

(i) ?Infant? means a child up to the age of twelve months.

(j) ?Infant formula? means a breast milk substitute intended to satisfy the normal nutritional requirements of infants up to the age of four to six months and prepared in accordance with the prevailing Nepali standards suitable for the physical constitution of such infants.

(k) ?Label? means any tag, mark, picture or other descriptive matter that is written, printed, lithographed, marked, embossed, included or otherwise shown on the container of a product.

(l) ?Manufacturer? means a person directly involved in the business of manufacturing or producing a product, or involved through an agent or by contract or through a person controlled under contract.

(m) ?Sale and distribution? means any act of marketing, distributing, advertising, distributing samples, public relations and information services, or otherwise bringing a product to market or selling it.

(n) ?Sample? means a single or small quantity of a product provided free of charge.

(o) ?Supplementary food? means suitable food used as a supplement when breast milk or breast milk substitutes are insufficient to meet the nutritional needs of an infant.

4. Breastfeeding Protection and Promotion Committee: (1) For the purpose of supervising compliance with this Act, and for protecting and promoting breastfeeding and controlling the sale and distribution of products, the Government of Nepal shall constitute a Breastfeeding Protection and Promotion Committee.

(2) The Committee shall consist of the following members:-

Amended by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075.

(a) Secretary, Ministry of Health and Population ? Chairperson

Amended by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075.

(b) Representative (Gazetted First Class), Ministry of Industry, Commerce and Supplies ? Member

Omitted by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075.

(c)

Omitted by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075.

(d)

Amended by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075.

(e) Representative (Gazetted First Class), Ministry of Education, Science and Technology ? Member

Amended by the Some Nepal Acts Amendment Act to Make Consistent with the Constitution of Nepal, 2075.

(f) Representative (Gazetted First Class), Ministry of Labour, Employment and Social Security ? Member

(g) Representative, Nepal Paediatric Society ? Member

(h) Representative, Federation of Nepalese Chambers of Commerce and Industry ? Member

(i) Two persons nominated by the Committee from among eminent persons working in the field of maternal and child health ? Member

(j) An eminent nutritionist nominated by the Government of Nepal ? Member

(k) One person nominated by the Government of Nepal from among mothers experienced in child rearing, nutrition and care ? Member

(l) A person designated by the Government of Nepal ? Member-Secretary

(3) The term of office of nominated members shall be two years, and they may be re-nominated as determined by the Committee.

(4) The Committee may invite domestic or foreign experts to participate as observers in its meetings.

(5) The Government of Nepal may, by notification in the Nepal Gazette, increase, decrease or alter the members of the Committee. 5. Meeting of the Committee: (1) A meeting of the Committee shall be convened by the Member-Secretary as directed by the Chairperson.

(2) The presence of two-thirds of the members of the Committee shall constitute a quorum for a meeting.

(3) The opinion of the majority of the members present at a meeting on any matter shall be deemed to be the decision of the Committee.

(4) The decision of the Committee shall be certified by the Member-Secretary.

(5) Other procedures relating to the meetings of the Committee shall be as determined by the Committee itself. 6.

Functions, Duties and Powers of the Committee: Subject to the policy approved by the Government of Nepal, the functions, duties and powers of the Committee shall be as follows:- (a) to supervise compliance with this Act as prescribed, (b) to recommend investigation and prosecution against manufacturers, distributors or health workers who violate the provisions of this Act, (c) to consider requests for receiving any product as a donation and to approve or reject such requests as prescribed, (d) to consider requests from health workers for assistance from manufacturers or distributors for research, scholarships, attending professional seminars or conferences, or organizing such seminars or conferences, and to approve or reject such requests as prescribed, (e) to review product labels submitted by manufacturers and distributors and approve labels that are consistent with the provisions of this Act, (f) to coordinate work relating to the dissemination of information and educational materials concerning infant feeding, (g) to formulate national policy for the protection and promotion of breastfeeding, (h) to form sub-committees as necessary for the purpose of implementation, supervision and control.

7. Information and Education on Infant Feeding: (1) The Ministry, after consulting the Committee, shall grant approval for the dissemination of information and educational materials relating to infant feeding. (2) Information and educational materials relating to infant feeding, whether written, audio or visual, shall clearly provide information on the following points:- (a) the benefits and superiority of breastfeeding, (b) the preparation for and maintenance of lactation, including maternal nutrition, (c) the negative effects on breastfeeding of bottle feeding or separate supplementary foods, (d) the difficulty of reverting to breastfeeding after a period of bottle feeding. (3) Information and educational materials that include matters relating to feeding infants with supplementary foods or breast milk substitutes shall, in addition to the information mentioned in sub-section (2), also clearly set out the following points:- (a) the proper use of breast milk substitutes, (b) the cost of feeding breast milk substitutes compared to the cost of breastfeeding, (c) the health hazards of improper preparation of breast milk substitutes and of inappropriate feeding and bottle feeding, (d) the method of feeding infants from a cup and spoon, (e) the method of preparing supplementary foods at home. (4) Information and educational materials shall contain only accurate and current information, and shall not use any picture or text that discourages breastfeeding or encourages bottle feeding habits.

8.

Health Care Bodies and Health Workers: (1) Heads of health care bodies and national and local health authorities shall adopt appropriate measures to promote the principles of this Act and to protect and encourage breastfeeding, and shall provide health workers with appropriate information and advice regarding their responsibilities, and shall ensure that health workers are informed of all matters mentioned in Section 7. (2) Health workers shall protect, promote and encourage breastfeeding. They shall be aware of the provisions of this Act, particularly the matters mentioned in Section 7, and shall, as far as possible, implement those provisions. (3) Health workers shall not, directly or indirectly, do anything that hinders the initiation and continuation of breastfeeding. (4) Health workers shall not accept any financial or material gift from manufacturers or distributors in any form. (5) Health workers shall not give samples of any product to anyone. (6) Health workers shall not promote any product in any manner. (7) If a health worker becomes aware that a manufacturer or distributor is attempting to give any gift or other financial benefit to them, or that any person has violated any other provision of this Act, they shall submit a written report thereof to the head of their institution, and the head shall promptly inform the Committee of the same.

9. Acts Prohibited for Manufacturers and Distributors: (1) No manufacturer or distributor shall advertise in any manner that:- (a) promotes any product, (b) suggests or implies that bottle feeding is equivalent to or better than breastfeeding. (2) For the purpose of this section, "advertisement" means all advertising done in the following manner:- (a) through any publication or by television, radio, film, video or telephone, (b) by the display of signs, billboards, notices or goods, (c) by the display of pictures or images, (d) by any other means. (3) Notwithstanding

anything contained in sub-section (1), advertising of products may be done in publications that reach only health professionals.

Provided that such advertising shall be limited to factual and scientific matters and shall not create the impression that bottle feeding is equivalent to or better than breastfeeding, and such advertising shall include the information mentioned in Section 7.

(4) No manufacturer or distributor shall give or distribute samples of any product to any person.

(5) No manufacturer or distributor shall promote any product within a health care body.

(6) For the purpose of this section, 'promotion' means introducing or familiarizing any person with a product in any manner, including the following methods:-

(a) by advertising,

(b) by using printed materials including books, leaflets or posters bearing the name or logo of the manufacturer or distributor or the name, logo, graphic or other representation of a proprietary product,

(c) by giving or distributing, at negligible or no cost, any article bearing the name or logo of the manufacturer or distributor or the name, logo, graphic or other representation of a proprietary product,

(d) by displaying products, or

(e) by any other means.

(7) No manufacturer or distributor shall supply products at a price lower than the retail price or donate products to a health care body or any other institution or organization, except where such body or organization requests a donation in the prescribed form and such request is approved by the Committee as prescribed.

(8) No manufacturer or distributor shall contact the general public within a health care body to increase their business or for such purpose.

(9) No manufacturer or distributor shall donate any equipment or articles to a health care body without the approval of the Committee.

(10) No manufacturer or distributor shall give any gift or provide any financial or other benefit to a health worker.

(11) No manufacturer or distributor or health worker shall give scholarships or research grants, or organize professional seminars or conferences, or provide funds required for a health worker to participate in a conference, except where a request is made in the prescribed form and such request is approved by the Committee as prescribed. 10.

11. Labeling: (1) Before any product is sold in Nepal, the manufacturer or distributor shall submit the label of such product to the Committee for approval, together with an application as prescribed.

(2) In the case of a product already being sold in Nepal, the manufacturer or distributor shall obtain approval from the Committee for the label of such product within ninety days from the date of commencement of this Act.

(3) The label of a product shall be prepared in a manner that provides the necessary information for the proper use of the product and does not discourage breastfeeding.

(4) No picture, diagram or other representation shall be shown on the label or container of a product, except

graphics illustrating the method of preparation.

(5) The label of a product shall bear the name and address of the manufacturer and, if possible, of the distributor.

(6) On the container of, or on a label inseparable from the container of, breast milk substitutes or other dairy products falling within the scope of this Act, there shall be printed in the Nepali language a clear, legible and easily understandable message containing all of the following information:-

- (a) the words "Important Notice" or words of similar effect,
- (b) a statement that breast milk is the best milk for infants,
- (c) a statement that the product should not be used without the advice of a health worker regarding the need and method of use,
- (d) instructions for appropriate preparation, in easily understandable graphics or words, and
- (e) the quantity of breast milk substitutes or other dairy products necessary to properly feed an infant per month.

(7) Words such as "humanized," "maternalized" or similar terms shall not be used.

(8) On the label of, or on any article visible from the outside of the container of, a type of milk that does not meet all the nutritional requirements of infant formula but can be modified for that purpose, there shall be a warning that such product alone should not be the sole source of nutrition for infants and should not be used for feeding infants except under the guidance of a health worker.

(9) On the label of sweetened condensed milk, there shall be a clear and legible warning that this should not be used for feeding infants.

(10) On the label of products other than feeding bottles and teats, the following particulars shall also be mentioned:-

- (a) ingredients,
- (b) analysis and composition of the product,
- (c) storage conditions to be observed,
- (d) batch number, storage condition, date of manufacture and date by which the product should be consumed, taking into account the season and climatic conditions.

(11) On the label of feeding bottles and teats, in addition to the name and address of the manufacturer and distributor, it shall be stated that breast milk is the best milk for infants and that feeding from a cup and spoon is safer than bottle feeding.

12. Quality: (1) Products, when manufactured, sold or otherwise distributed, shall be of a quality determined or recommended by the Nepal Quality Office.

(2) The Central Food Research Laboratory shall have the authority to test any product sold in Nepal to determine whether it is fit for human consumption.

(3) Products that do not meet the safety standards for use in the country of manufacture shall not be sold in Nepal.

(4) Products that have passed their expiry date shall not be marketed, sold or distributed.

(5) To prevent deterioration, adulteration and contamination, products other than feeding bottles and teats

shall be sold only in the original container. 13. Inspection: (1) For the purpose of inspecting and investigating whether manufacturers, distributors, health care bodies and health workers are complying with this Act or the rules made under this Act, and taking necessary action, the Ministry may, on the recommendation of the Committee, appoint a necessary number of inspectors or, with the approval of the concerned body of the Government of Nepal, designate employees to act as inspectors.

(2) An inspector appointed or designated under sub-section (1) shall, as prescribed, inspect and investigate whether manufacturers, distributors, health care bodies and health workers have complied with this Act or the rules made under this Act, and shall submit a report thereof to the Committee. 14. License, Permit or Authorization May Be Suspended or Cancelled: If, from a report submitted by an inspector under sub-section (2) of Section 13, it appears that a manufacturer, distributor, health care body or health worker has not complied with this Act or the rules made under this Act, the Ministry may, on the recommendation of the Committee, write to the concerned body to suspend or cancel the license, permit or authorization obtained from the Government of Nepal or any other body for carrying on their business or profession. 15. Functions and Powers of Inspectors: Except as provided in this Act, the other functions and powers of an inspector shall be as prescribed. 16.

Penalties: (1) A health worker who violates sub-section (4), (5) or (6) of Section 8 shall be liable to a fine of up to one thousand rupees or imprisonment for up to one month or both. (2) A manufacturer or distributor who violates sub-section (1), (4), (5), (7), (8), (9), (10) or (11) of Section 9 shall be liable to a fine of up to ten thousand rupees or imprisonment for up to three months or both. (3) A manufacturer or distributor who violates Section 10 or 11 shall be liable to a fine of up to fifteen thousand rupees or imprisonment for up to four months or both. (4) A person who violates any other provision of this Act or the rules made under this Act, other than those mentioned in sub-section (1), (2) or (3), shall, depending on the nature of the offence, be liable to a fine of up to two thousand rupees or imprisonment for up to one month or both. (5) When the court punishes any person for an offence under this section, it may also order the person who committed the offence to pay compensation of between twenty-five thousand rupees and one hundred thousand rupees to the person who suffered loss from such offence or the heir of such person. 17. Liability of Firm or Incorporated Body: If any firm or incorporated body violates this Act or the rules made under this Act, the proprietor or partner of such firm, and in the case of an incorporated body, the chief administrative officer conducting the affairs of such body, shall be liable to the penalty under Section 16. 18. Government to be Plaintiff: The Government of Nepal shall be the plaintiff in cases under this Act. 19. Investigation and Filing of Cases: (1) An inspector shall investigate cases relating to offences punishable under this Act, and after completion of such investigation, shall file the case in the District Court. (2) While investigating and filing a case under sub-section (1), the inspector may take the opinion of the government attorney. After the case is filed, the government attorney shall conduct the argument and pleading of the case. 20. Power to Make Rules: The Government of Nepal may make necessary rules for the purpose of implementing the objectives of this Act.